

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MALIK WHITE

Index No.:

SUMMONS

Plaintiff

-against-

NEW YORK CITY POLICE SERGEANT KEVIN MCCARTHY,
NEW YORK CITY POLICE OFFICER UMAR KHITAB,
NEW YORK CITY POLICE OFFICER STEVEN RUPNICK
AND CITY OF NEW YORK

Defendants
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To the above-named Defendants: YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
April 20, 2022

Attorney(s) for the Plaintiff

LAW OFFICES OF DOUGLAS G.
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MALIK WHITE

Index No.:

COMPLAINT

Plaintiff

-against-

NEW YORK CITY POLICE SERGEANT KEVIN MCCARTHY,
NEW YORK CITY POLICE OFFICER UMAR KHITAB,
NEW YORK CITY POLICE OFFICER STEVEN RUPNICK
AND CITY OF NEW YORK

Defendants
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Plaintiff, by and through his counsel, LAW OFFICES OF DOUGLAS G. RANKIN, P.C.
alleges the following facts and causes of action against the above-captioned Defendants:

PARTIES

1. Plaintiff Malik White (referred to as “PLAINTIFF” throughout this complaint”) is a natural person, who, at all times mentioned herein, resided in Kings County, New York.
2. At all times mentioned herein, Defendant New York City Police Sergeant Kevin McCarthy (“MCCARTHY”) was an employee of the City of New York and acting within the course and scope of his employment.

3. At all times mentioned herein, Defendant New York City Police Officer Umar Khitab (“KHITAB”) was an employee of the City of New York and York and acting within the course and scope of his employment.
4. At all times mentioned herein, Defendant New York City Police Officer Steven Rupnick (“RUPNICK”) was an employee of the City of New York and acting within the course and scope of his employment.
5. At all times mentioned herein, Defendant City of New York (“CITY”) was a municipal agency organized and existing under and by virtue of the laws of the State of New York.

STATEMENT OF FACTS

6. On September 13, 2018, at approximately 12:50 am Malik White was driving down Park Place, in the County of Kings, Sate of New York. Mr. White was headed to a check cashing store. Mr. White had the windows down and his car music playing. Mr. White noticed that he was being followed by a black car with very dark windows. The vehicle continued to follow Mr. White for approximately three (3) blocks, at which time the vehicle turned on their flashing lights.
7. Mr. White pulled over in the vicinity of 1444 Park Place near the corner of Utica Avenue. Immediately after pulling his vehicle over, Mr. White was confronted at

the driver side window by a white, male, dressed in plain clothes, who failed to initially identify himself as a police officer.

8. The officer asked Mr. White for his driver's license and registration. Mr. White, while retrieving his license and registration asked the officer the reason for stopping him. The officer become very hostile demanding Mr. White's license and registration. Mr. White provided his license and advised the individual that the vehicle belonged to his wife. Mr. White asked the officer if he could call his wife, in order to locate the registration. The officer instructed Malik White to call his wife, which he did. However, the officer proceeded to pull Mr. White out of the car, taking his cellphone and hanging up on Mr. White's wife.
9. Thereafter, two other officers started to search him and then brought him to the back/truck of the car where they started asking him questions. Mr. White answered their questions then asked what the reason for the stop was. One officer stated in sum and substance, "you were speeding." Mr. White responded in sum and substance "why would I be speeding when I watched Y'all follow me for 3 blocks? How fast was I going? Why would I be speeding if it's still raining, and the grounds are slippery?" The officer informed Mr. White that he had a speed detector in his car, and he has special training to know when someone is speeding.
10. Thereafter, all three of the officers became very hostile with Mr. White and began to search the vehicle. An officer asked Mr. White why he was so nervous, and he replied in sum and substance, "I'm scared of guns," an officer then replied in sum

and substance, “why are you scared of guns when you shot and killed someone in 2007?”

11. Mr. White asked the officer what he was talking about, as Mr. White advised the officers that he has never shot or killed anyone. One officer stated in sum and substance, “that’s not what this says.” Mr. White asked if he could see what the officer was talking about, but he refused to show it to Mr. White, who then stated in sum and substance, “whatever you’re reading isn’t true and that is called slander.”
12. Immediately thereafter, one of the officers told Mr. White to sit down in the car where he slammed/assaulted Mr. White with the car door on his legs. The officer then pushed the trunk button and began to search the truck without Mr. White’s consent. Once the officers finished searching the trunk, they advised Mr. White that he could now leave.
13. Mr. White immediately request the names and badge numbers of all three (3) officers, and they all refused to provide the requested information. Mr. White advised the officers he needed this information for proof of the stop because he felt his rights had been violated.
14. The officer, who was of sergeant rank, stated in sum and substance, that the only way they were able to give Mr. White proof of the stop would mean issuing Mr. White a summons. Mr. White told the officers he did nothing wrong, at which time all three (3) officers got back into their car and almost struck Mr. White as he was attempting to take a picture of their license plate.

15. Upon observing Mr. White taking the picture of their unmarked vehicle the officers jumped out of the vehicle and told Mr. White they were going take him to jail and tell his job about the incident.
16. Mr. White at that point was scared and confused because one of the officers/which he believed to be a sergeant, jumped in his face, and grabbed his right shoulder where he suffered from a rotator cuff tear, causing him pain. This same officer/sergeant had his other hand on his gun, causing Mr. White to fear for his life.
17. Mr. White was then issued a fabricated summons with no court date, falsely stating that Mr. White was driving recklessly. Mr. White asked for badge numbers multiple times and two out of the three (3) officers refused to give it to him. Mr. White thereafter asked for a supervisor and one of officers stated in sum and substance that he is the sergeant, and then proceeded to pull out his badge. Mr. White took a picture of the badge and asked him for his colleagues' badge numbers and the sergeant said they didn't have to give it to Mr. White.
18. Mr. White stated in sum and substance, "yes you do" at which time only one of the officers pulled out his badge which had a black sticker/tape covering his badge number. The officers proceeded to drive off and Mr. white rushed to the 77th police station where he begged for help from the police officers who were inside the station. As Mr. White was begging for help the same sergeant who had stopped his vehicle and grabbed his shoulder in a painful manner, stated, "what do you want?"

19. Mr. White again told the sergeant that he wanted the other two officers badge numbers, but the sergeant proceeded to tell Mr. White that he already had his badge number. Mr. White again asked for the badge number of the other two (2) officers, who had searched his vehicle without consent, and especially the one who assaulted/slammed the door on his legs and popped his trunk.
20. Mr. White asked to talk to another supervisor who was on duty, but the sergeant said he was the only boss on duty at that time. Mr. White believed the sergeant was being dishonest, because he observed a Lieutenant with a white shirt come out from the back. The lieutenant spoke to Mr. White and provided him with the complaint forms needed to file a complaint.
21. Mr. White asked again for the other two officers badge numbers the Lieutenant said Mr. White would have to get it from the Sergeant who was riding around with them. The sergeant continued to be hostile and walked away from Mr. White several times with an intimidating tone and body language. The sergeant stated in sum and substance that he would have Mr. White arrested for disorderly conduct and kept saying he would call Mr. White's job and report him.
22. Mr. White was told that everything that occurred during his traffic stop was recorded from their police car. The sergeant finally wrote down two (2) shield numbers for the other two (2) officers involved in the traffic stop. The shield numbers were written faintly on a piece of paper and didn't seem to be the correct shield numbers. Mr. White filed an official complaint with CCRB, resulting in partially substantiated findings.

FIRST CAUSE OF ACTION (42 USC § 1983)

23. PLAINTIFF repeats and realleges each and every allegation above as if fully set forth herein.
24. Defendants MCCARTHY, KHITA AND RUPNICK, RUPNICK have deprived PLAINTIFF of his civil, constitutional, and statutory rights under color of law; and
25. Conspired to deprive him of such rights and are liable to PLAINTIFF under 42 USC § 1983.
26. Defendants MCCARTHY, KHITA AND RUPNICK, RUPNICK conduct deprived PLAINTIFF of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.
27. Defendants MCCARTHY, KHITA AND RUPNICK, RUPNICK conduct also deprived plaintiffs of his right to due process of law, pursuant to the Fourteenth Amendment of the United States Constitution.
28. Defendants MCCARTHY, KHITA AND RUPNICK did falsely imprison, did use excessive force, did maliciously prosecute, did conspire, and did fail to intervene in each other's obviously illegal activity.
29. Defendants MCCARTHY, KHITA AND RUPNICK are liable to PLAINTIFF, pursuant to 42 U.S.C. section 1983, for compensatory and for punitive damages.

SECOND CAUSE OF ACTION (42 USC § 1983 CONSPIRACY)

30. PLAINTIFF repeats and realleges each and every allegation above as if fully set forth herein.
31. Defendants MCCARTHY, KHITA AND RUPNICK, acting under color of law, agreed to violate the PLAINTIFF' S rights in the manner described above. Further defendants MCCARTHY, KHITA AND RUPNICK made an agreement to attempt to cover up the illegal search and seizure and assault committed against plaintiff.
32. Defendants MCCARTHY, KHITA AND RUPNICK took action in furtherance of this agreement by refusing to provide their badge numbers and fabricating a reckless driving summons and providing fabricated testimony to CCRB.
33. Defendants MCCARTHY, KHITA AND RUPNICK are liable to PLAINTIFF, pursuant to 42 U.S.C. section 1983, for compensatory and for punitive damages.

THIRD CAUSE OF ACTION (42 USC § 1983 FALSE IMPRISONMENT)

34. PLAINTIFF repeats and realleges each and every allegation above as if fully set forth herein.
35. Defendants MCCARTHY, KHITA AND RUPNICK, acting under color of law, intended to confine PLAINTIFF;

36. Defendants MCCARTHY, KHITA AND RUPNICK acts resulted in PLAINTIFF'S confinement; and
37. Defendants MCCARTHY, KHITA AND RUPNICK were consciousness that said confinement of PLAINTIFF would result in harm;
38. Said imprisonment or confinement of PLAINTIFF did cause harm; and
39. Defendants MCCARTHY, KHITA AND RUPNICK are liable to PLAINTIFF, pursuant to 42 U.S.C. section 1983, for compensatory and for punitive damages.

FOURTH CAUSE OF ACTION (42 USC § 1983 MALICIOUS PROSECUTION)

40. PLAINTIFF repeats and realleges each and every allegation above as if fully set forth herein.
41. Defendants MCCARTHY, KHITA AND RUPNICK, RUPNICK acting under color of law initiated a prosecution against PLAINTIFF
42. Defendants MCCARTHY, KHITA AND RUPNICK lacked probable cause to believe the proceeding could succeed.
43. Defendants MCCARTHY, KHITA AND RUPNICK acted with malice, and
44. The prosecution was terminated in PLAINTIFF'S favor.
45. Defendants MCCARTHY, KHITA AND RUPNICK are liable to PLAINTIFF, pursuant to 42 U.S.C. section 1983, for compensatory and for punitive damages.

FIFTH CAUSE OF ACTION (42 USC § 1983 FAILURE TO INTERVENE)

46. PLAINTIFF repeats and realleges each and every allegation above as if fully set forth herein.
47. Defendants MCCARTHY, KHITA AND RUPNICK, RUPNICK acting under color of law, knew that excessive force was being used;
48. PLAINTIFF was unjustifiably detained;
49. A constitutional violation was being committed by Defendants MCCARTHY, KHITA AND RUPNICK;
50. Defendants MCCARTHY, KHITA AND RUPNICK knew excessive force was being used;
51. PLAINTIFF was unjustifiably detained;
52. A constitutional violation was being committed by Defendants MCCARTHY, KHITA AND RUPNICK;
53. Defendants MCCARTHY, KHITA AND RUPNICK had a realistic opportunity to intervene to prevent the harm from occurring;
54. Defendants MCCARTHY, KHITA AND RUPNICK are liable to PLAINTIFF, pursuant to 42 U.S.C. section 1983, for compensatory and for punitive damages.

SIXTH CAUSE OF ACTION (42 USC § 1983 and 1981 EXCESSIVE FORCE)

55. The conduct and actions of Defendants MCCARTHY, KHITA AND RUPNICK acting under color of law, in assaulting PLAINTIFF and using objectively unreasonably excessive force, was done intentionally and with deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts,
56. was done without lawful justification or reason, was designed to and did cause specific and serious harm, pain, and suffering in violation of PLAINTIFF's constitutional rights as guaranteed under 42 U.S.C. Sections 1981, 1983 and Fourth and Fourteenth Amendments to the United States Constitution.
46. As a result of the foregoing, PLAINTIFF sustained painful injuries to his body, was made ill, was subject to great humiliation and Defendants MCCARTHY, KHITA AND RUPNICK are liable to PLAINTIFF, pursuant to 42 U.S.C. section 1983, for compensatory and for punitive damages.

SEVENTH CAUSE OF ACTION (42 USC § 1983 MONELL CLAIM)

47. PLAINTIFF repeats and realleges each and every allegation above as if fully set forth herein.
48. The CITY is liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees'

violation of plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The CITY has been alerted to the regular use of excessive force and false arrests by its police officers but has nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the violation of plaintiffs' constitutional rights in this case.

49. The aforesaid event was not an isolated incident. The CITY has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers use excessive force, unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the CITY has allowed policies and practices that allow the aforementioned to persist.
50. For example, the well documented failures of the Civilian Complaint Review Board ("the CCRB"), a City agency, to substantiate obviously meritorious citizen complaints have gone uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not

substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

51. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint, and the Department Advocate proves the case in an internal trial again
52. Furthermore, the police commissioner still maintains the power to reduce the discipline against such an officer.
53. Further, the CITY has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected. Additionally, according to a report of the New York City Bar Association issued

in 2000, the CITY has isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers.

54. The CITY is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the CITY has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.
55. Plaintiff has been damaged as a result of the deliberate indifference of the CITY to the constitutional rights of the CITY'S inhabitants.
56. The CITY is liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The CITY has been alerted to the regular use of excessive force and false arrests by its police officers, but has nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the

violation of plaintiffs' constitutional rights in this case.

57. Defendant CITY is liable to PLAINTIFF, pursuant to 42 U.S.C. section 1983, for compensatory and for punitive damages.

WHEREFORE, PLAINTIFF demands the following relief jointly and severally against all of the Defendants.

- (a) Compensatory damages in the sum of \$1,000, 000.00(One Million Dollars).
- (b) Punitive damages in the amount of \$3,000,000.00 (Three Million Dollars)
- (c) Costs and attorney's fees.
- (d) Such other and further relief as this court may deem appropriate and equitable.

DATED: April 20, 2022
Brooklyn, New York

Yours, etc.

LAW OFFICES OF DOUGLAS G.
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